



CHAPTER iv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Leith Harbour and Docks. A.D. 1924.
[28th March 1924.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Leith Harbour and Docks Order Confirmation Act 1924. Short title.

A.D. 1924.

SCHEDULE.

LEITH HARBOUR AND DOCKS.

Provisional Order to extend the time for the compulsory purchase of lands authorised by the Leith Harbour and Docks Act 1913 and the Leith Harbour and Docks Order 1919 to make further provision with respect to rates borrowing powers and sinking fund and for other purposes.

WHEREAS by the Leith Harbour and Docks Act 1913 (hereinafter referred to as "the Act of 1913") and by the Leith Harbour and Docks Order 1919 (hereinafter referred to as "the Order of 1919") the Commissioners for the Harbour and Docks of Leith (hereinafter called "the Commissioners") were authorised to construct the works in the Act of 1913 and the Order of 1919 described and to acquire compulsorily the lands shown on the plans deposited with reference to that Act and that Order respectively :

And whereas it is expedient that the period limited by the Act of 1913 as extended by an Order made on the thirteenth day of October one thousand nine hundred and seventeen by the Board of Trade under the Special Acts (Extension of Time) Act 1915 and further extended by the Order of 1919 for the compulsory purchase of lands for the purposes of that Act should be further extended :

And whereas it is expedient that the period limited by the Order of 1919 for the compulsory purchase of lands for the purposes of that Order should be extended :

And whereas it is expedient that the rates which the Commissioners are authorised to demand levy collect and receive should be revised and that they should be authorised to demand levy collect and receive new and modified rates as in this Order provided :

And whereas it is expedient that the borrowing powers of the Commissioners should be defined as at the fifteenth day of May one thousand nine hundred and twenty-three :

A.D. 1924.

And whereas owing to circumstances arising out of the war the Commissioners have not fully performed their obligations with respect to the sums to be set apart as sinking fund for the repayment of moneys borrowed by them and it is expedient that the sums actually so set apart should be deemed to be a discharge of those obligations as in this Order provided :

And whereas it is expedient that the provisions of the Leith Harbour and Docks Order 1908 with respect to sinking fund should in their application to money to be borrowed for certain purposes be varied as in this Order provided :

And whereas it is expedient that the Commissioners should be empowered to settle by agreement in the manner herein provided questions which have arisen or may arise as to the rights of parties in an area of ground occupied by premises commonly known as Trinity Chain Pier public house or bar Trinity Crescent Edinburgh :

And whereas it is expedient that the other powers in this Order contained should be conferred on the Commissioners :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Leith Harbour and Docks Order 1924 and this Order and the Leith Harbour and Docks Acts 1875 to 1919 may be cited together as the Leith Harbour and Docks Acts 1875 to 1924.

Short and
collective
titles.

2. The Harbours Docks and Piers Clauses Act 1847 excepting the sections thereof with respect to lifeboats with respect to keeping a tide and weather gauge (unless the Commissioners shall be required by the Board of Trade to provide and maintain a lifeboat and tide and weather gauge) with respect to the accounts to be kept of the rates and of the vessels in respect of which they are payable and with respect to the police of the harbour

Partial
incorpora-
tion of
Harbours
Docks and
Piers
Clauses Act.

A.D. 1924. dock and pier and excepting sections 12 25 and 26 of that Act is except where expressly varied by this Order incorporated with and forms part of this Order Provided that the following expressions used in the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

The expressions “packet boat” and “Post Office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “post office bag of letters” means a mail bag as defined by the same Act:

Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if such vessel also conveys passengers or goods for hire.

Interpre-
tation.

3. In this Order the several words and expressions to which meanings are assigned by the Harbour Acts shall have the same respective meanings unless there is something in the subject or context repugnant to such construction In this Order the expression—

“The Commissioners” means the Commissioners for the Harbour and Docks of Leith;

“The Act of 1892” means the Leith Harbour and Docks Act 1892;

“The Order of 1908” means the Leith Harbour and Docks Order 1908;

“The Act of 1913” means the Leith Harbour and Docks Act 1913;

“The Order of 1917” means the Order made on the thirteenth day of October one thousand nine hundred and seventeen by the Board of Trade under the Special Acts (Extension of Time) Act 1915;

“The Order of 1919” means the Leith Harbour and Docks Order 1919;

“The Harbour Acts” means the Leith Harbour and Docks Acts 1875 to 1919;

“Port of Leith” means and includes the port and harbour of Leith and the harbour docks quays

piers and whole other works and property included in the undertaking defined in and vested in the Commissioners by the Harbour Acts and all future additions thereto and extensions thereof; A.D. 1924.
—

“City” means the city and royal burgh of Edinburgh;

“Corporation” means the lord provost magistrates and council of the city.

4. The time limited for the compulsory purchase of lands for the purposes of the Act of 1913 by section 17 (Period for acquisition of lands) of the Act of 1913 as extended by the Order of 1917 and further extended by section 16 (Extending period limited by Act of 1913 for compulsory purchase of lands) of the Order of 1919 is hereby further extended for a period of five years from the sixteenth day of April one thousand nine hundred and twenty-four and on the expiration of that period those powers shall cease. Further extending period limited by Act of 1913 for compulsory purchase of lands.

5. The time limited for the compulsory purchase of lands for the purposes of the Order of 1919 by section 12 (Period for acquisition of lands) of the Order of 1919 is hereby extended for a period of five years from the sixteenth day of April one thousand nine hundred and twenty-four and on the expiration of that period those powers shall cease. Extending period limited by Order of 1919 for compulsory purchase of lands.

6. Except where otherwise expressly provided by this Order section 60 (Commissioners may make other charges) of the Act of 1892 section 21 (Commissioners may vary rates) of the Order of 1919 and section 30 (Power to vary the rates from time to time) of the Harbours Docks and Piers Clauses Act 1847 shall extend and apply to all the rates and charges by the Harbour Acts or this Order or any of them authorised. Commis- sioners may make other charges and vary rates.

7. In addition to the powers conferred on the Commissioners by the Harbour Acts the Commissioners may demand levy collect and receive such inclusive rates or charges as they may resolve for (1) work done services rendered and facilities afforded in respect of or in relation to the use of any works machinery conveniences appliances plant and apparatus (in this section referred to as “appliances”) belonging to or provided by them at Inclusive rates for work done &c. and for use of appliances and wages.

A.D. 1924. the Port of Leith and (2) the use of appliances and where so provided in the Harbour Acts the wages of the men attending and working appliances:

Provided that the Commissioners may by resolution prescribe reasonable terms and conditions applicable to the demanding levying collecting and receiving of such inclusive rates and charges and may by resolution also differentiate between the rates or charges for the use of any appliances with reference to the goods for the transport of which such appliances may be used but such terms and conditions shall be the same to all persons in like circumstances:

Provided further that where rates and charges for work done services rendered and facilities afforded and use of appliances and wages are specified in the Harbour Acts such inclusive rates and charges shall not exceed in cumulo the sum of the rates and charges authorised by the Harbour Acts (a) in respect of work done services rendered and facilities afforded as aforesaid and (b) for such use of appliances together with the wages aforesaid.

Coal cranes
tips or
hoists of
steam
hydraulic
or other
power and
capstans
when
working in
connection
therewith.

8. The Commissioners may at their option demand levy collect and receive for the use of coal cranes tips or hoists of steam hydraulic or other power and capstans and jiggers when working in connection therewith the following rate in substitution for but not in addition to (a) the rates specified in Articles (F) and (G) of Schedule E to the Order of 1919 and (b) the charges authorised by section 60 (Commissioners may make other charges) of the Act of 1892 that is to say a rate of sevenpence per ton for:—

- (1) each ton or part of a ton of coal coke or cinders shipped; and
- (2) each ton or part of a ton of sulphur or brimstone coal briquettes coal tar pitch limeshells nitre cake sandstone broken for concrete granite chips burnt ore and other minerals shipped by coal cranes tips or hoists including any capstans worked in connection therewith (when not required for coal shipments):

Provided that—

- (i) the said rate of sevenpence per ton shall include the charge for servants and labourers working any capstan as if such capstan was

part of the coal crane tip or hoist with which it shall be so worked; A.D. 1924.

(ii) when any such coal crane tip hoist or capstan is worked before or after the ordinary or specified working hours ten shillings per hour may be charged in addition to the rate per ton; and

(iii) in every case for any single employment of a crane a charge may be made of not less than one pound sterling.

9. The Commissioners may at their option and at any time and from time to time classify any sheds any quays any ground set apart and any ground not set apart for storing goods or any part or parts thereof into classes with reference to any one or more of the following matters namely with reference to—

Classifica-
tion of
sheds &c.

- (a) the condition thereof whether covered or uncovered paved or unpaved or otherwise;
- (b) the situation thereof in relation to transport by sea road or rail;
- (c) the commercial value thereof for the purpose of laying down or storing goods;
- (d) the weight bulk or value of the goods to be or in the opinion of the Commissioners likely to be laid down thereon or stored therein;
- (e) whether available as spare areas for storing goods when not otherwise in use; and
- (f) any qualities which in the opinion of the Commissioners attach thereto;

and the Commissioners may vary rates according to any classification made under the powers of this section in the manner provided in section 21 (Commissioners may vary rates) of the Order of 1919 or in section 30 (Power to vary the rates from time to time) of the Harbours Docks and Piers Clauses Act 1847 and the said sections shall be construed accordingly Provided that where rates are specified by the Harbour Acts or this Order for any of the purposes in this section mentioned no rates fixed under this section shall exceed such rates.

10. Notwithstanding anything contained in subsection (a) of section 18 (Commissioners to levy rates on

Rates on
coastwise
goods.

A.D. 1924. — goods and shipping &c.) and in Schedule A (Rates on goods) and in section 21 (Commissioners may vary rates) of the Order of 1919 or in section 30 (Power to vary the rates from time to time) of the Harbours Docks and Piers Clauses Act 1847 the Commissioners may in respect of goods imported or exported coastwise demand levy collect and receive such rates lower than those in force for the time being in pursuance of the said sections and schedule of the Order of 1919 as the Commissioners may from time to time by resolution fix. Provided that any rates so fixed shall not be less than fifty per centum of the rates for the time being charged in respect of goods imported or exported other than coastwise under Schedule A of the Order of 1919. Provided further that for the purposes of this section the words “goods imported or exported coastwise” shall be construed as meaning goods imported or exported in vessels falling under either Group 1 or Group 2 of Schedule B (Branch I — Rates on Vessels) of the Order of 1919.

Rates for
vessels
loading
coal and
other
minerals
only.

11. Notwithstanding anything contained in subsection (b) of section 18 (Commissioners to levy rates on goods and shipping &c.) and Schedule B (Branch I—Rates on Vessels) of the Order of 1919 the Commissioners may in respect of any vessels arriving at the Port of Leith which shall load at the Port of Leith only coal coke or cinders demand levy collect and receive either (1) the rates authorised by the Harbour Acts or this Order or (2) such lower rates as the Commissioners may from time to time resolve. Provided that if any such vessel shall take on board goods other than (a) coal coke or cinders or (b) provisions for use on such vessel or land any goods or land or take on board any passengers such vessel may in the option of the Commissioners be charged the full rates at the time authorised by the Commissioners to be levied collected and received under the Harbour Acts or this Order.

Rates on
part-cargo
vessels.

12. The Commissioners may in their option demand levy collect and receive in respect of any vessel from a port under either Group 4 or Group 5 specified in Schedule B (Branch I—Rates on Vessels) of the Order of 1919 entering the Port of Leith and there loading or discharging part cargo only and which vessel during the same voyage either has called or is to call at another port

to load or discharge another portion of the cargo either (1) the rates prescribed by that schedule in respect of such group or (2) a rate not exceeding one shilling per register ton per inward or outward voyage Provided that for the purposes of this section the words "part cargo" shall be construed as meaning a portion of the cargo carried on the same voyage and not exceeding in number of tons gross weight the net registered tonnage of such vessel with the addition of the tonnage of the space occupied by deck cargo. A.D. 1924;

13. Paragraphs 1 and 2 of Branch II (Newhaven Harbour Rates) of Schedule B of the Order of 1919 are hereby repealed and in lieu thereof the following provisions shall apply and have effect:— Rates for fishing boats.

Every fishing boat to be charged for each entry to Newhaven Harbour according to the following classification videlicet :—

	s.	d.
Class (A) boat of forty feet keel and upwards - - - - -	3	0
Class (B) boat of thirty feet keel and under forty feet keel - - - - -	2	0
Class (C) boat under thirty feet keel - - - - -	1	0

and the Commissioners may in the case of any such boat allow a commuted rate of three pounds per annum for boats falling under Class (A) two pounds per annum for boats falling under Class (B) and one pound per annum for boats falling under Class (C).

14. The Commissioners may by resolution—

- (1) extend beyond forty-eight hours the time prescribed by Schedule E (IV—For use of sheds quays and spare ground not set apart for storing goods) of the Order of 1919 during which goods may remain free of such rates in any shed or on any quay;
- (2) fix lower or higher rates for such use during such periods after such forty-eight hours or after the time (if any) prescribed under subsection (1) hereof as they may prescribe according to the duration of such periods;

Modified rates for use of cranes capstans weighing machines rails sheds and quays and ground for storing.

A.D. 1924.

- (3) fix lower or higher rates for such use during periods to be prescribed by them as aforesaid for different classes of goods as goods may be classified by them for that purpose with reference to the weight bulk or value of or to any other qualities which in the opinion of the Commissioners attach to such goods;
- (4) fix lower or higher rates for the use of cranes capstans jiggers weighing machines or rails or any of these (a) for different classes of goods as goods may be classified by them as aforesaid or (b) according to the weights lifted by cranes in such manner that the rate for lifts not exceeding the number of tons specified in the resolution be less than the rates for lifts exceeding that number of tons; and
- (5) fix the amount of a single charge for the use of any crane at less than the amount prescribed by the Harbour Acts or this Order:

Provided that where rates are specified by the Harbour Acts or this Order for any of the purposes in this section mentioned no rates fixed under this section shall exceed such rates.

Rates on
vessels
loading coal
or pro-
visions for
vessel's use
only.

15. Notwithstanding anything contained in section 21 (Commissioners may vary rates) of the Order of 1919 or in section 30 (Power to vary the rates from time to time) of the Harbours Docks and Piers Clauses Act 1847 and in addition to the powers conferred upon them by the Harbour Acts the Commissioners may fix modified rates on vessels entering the Port of Leith for the purpose only of taking on board coal or provisions for use on such vessel and such modified rates may be higher or lower according to the number of days such vessel shall remain in the Port of Leith. Provided that such modified rates shall not exceed the rates for vessels prescribed by the Harbour Acts. Provided further that if such vessel shall take on board goods other than coal coke or cinders or provisions for use on such vessel or land any goods or land or take on board any passengers such vessel may in the option of the Commissioners be charged the full rates at the time authorised by the Commissioners to

be demanded levied collected and received under the Harbour Acts. A.D. 1924.

16. Regulation 6 of Schedule C (Regulations applicable to Schedules A and B) of the Order of 1919 is hereby repealed and in lieu thereof the following regulation is enacted:—

Regulation
6 of
Schedule C
of Order of
1919 re-
pealed and
amended
regulation
enacted.

During the period between Whitsunday in one year and Whitsunday in the following year when a vessel shall have paid the full rates exigible for eight voyages inward or outward under one or more of Groups 3 4 and 5 specified in Schedule B (Branch I—Rates on Vessels) of the Order of 1919 such vessel shall for any further voyage under any of these groups pay twopence half-penny per register ton per voyage and when any vessel shall have so paid the full rates exigible for eight inward or outward voyages under Group 1 or Group 2 specified in the said schedule such vessel shall for any further voyage under either of these groups pay either (1) twopence half-penny per register ton per voyage or (2) such (if any) lower rate as shall be applicable to the case Provided that the Commissioners may by resolution modify the rates exigible in respect of any voyage or voyages of a vessel under the said Groups 1 and 2 or either of them or under the said Groups 3 4 and 5 or one or more of them after that vessel shall have paid the full rates exigible for one or more voyages in the same group or groups.

Any voyage upon which a vessel shall have paid rates at or over ninepence or such less rate per register ton as the Commissioners may by resolution fix shall be reckoned in computing the number of voyages inward or outward under the said Groups 3 4 and 5.

17. Paragraph (d) of section 18 (Commissioners to levy rates on goods and shipping &c.) and Schedule E of the Order of 1919 shall be read and have effect as if—

Amend-
ment of
Schedule E
of Order of
1919.

(1) In the title of the said schedule the words “Capstans and Jiggers” were inserted after the word “Cranes” and the words “Cattle

A.D. 1924.

Sheds Yards and Storage Ground" were inserted after the word "Quays":

- (2) For "I.—For Use of Cranes" were substituted "I.—For Use of Cranes Capstans &c.":
- (3) The words "Or in the option of the Commissioners a modified charge of three shillings per hour or part of an hour with a minimum charge of nine shillings for any one hire of such crane" and the words "Or in the option of the Commissioners a modified charge of four shillings and sixpence per hour or part of an hour with a minimum charge of fifteen shillings for any one hire of such crane" were omitted from Article (B):
- (4) The words "Every fraction of a ton of each lift by a crane of any capacity shall be reckoned and charged for as a ton" were omitted from Article (E):
- (5) The following provisions were inserted in lieu of Article (H):—

"The Commissioners may by resolution modify the rates for the use of each or any crane except a coal crane so that (a) the rate for lifts not exceeding the number of tons lifted specified in the resolution may be less per ton than the rate for lifts exceeding that number of tons and (b) where boilers or heavy machinery exceeding fifteen ton lifts are lifted and set down on the quay and within the number of days thereafter specified in the resolution (not reckoning Sunday) are re-lifted and put on board a vessel lighter waggon or cart the rates for the second lift may be reduced to any extent not exceeding fifty per centum below the rate charged for the first lift;

No single charge for the use of any crane shall cover a period exceeding a day of ordinary working hours;"

- (6) The following provisions were inserted in lieu of Article (I):—

"(I) All Cranes Capstans and Jiggers.

When employed for discharging the whole of a cargo or for any other purpose implying

extensive and prolonged use which the Commissioners may by resolution decide to be a use warranting them in charging by agreement the charge may in the option of the Commissioners be (1) the charges prescribed by this Schedule or (2) such charges as may be fixed by agreement between the Commissioners and the user. A.D. 1924.

In all cases excepting the cranes under Article (A) of this Part of this Schedule permits for the use of cranes capstans and jiggers will be given only at the collector's office. Persons desiring the use of them shall deposit with him such sum as he shall estimate as sufficient to cover the rates or charges in each case before any permit is issued and the use of the cranes capstans and jiggers is to be held as given subject to the Regulations and Orders applicable thereto for the time being and to the conditions printed on the permit notes or subject to agreement as the case may be.

The Commissioners may if they think fit by resolution fix for the use of each or any crane capstan or jigger a modified charge per day hour or part of an hour with or without a minimum charge for any one hire of such crane capstan or jigger. Provided that the user of any crane capstan or jigger shall when making application for the use of the same be entitled by notice in writing to the Commissioners to elect to pay such modified charge instead of the charge authorised by this Schedule. Every fraction of a ton of each lift by a crane of any capacity shall be reckoned and charged for as a ton.

Exception.

Except during ordinary or specified working hours :—

For the use of any crane (other than coal cranes tips or hoists under Article (G) of this Schedule otherwise specially provided for) or capstan or jigger at or during any other

A.D. 1924.

hours than the ordinary or specified working hours of the day the rates and men's wages shall be one-half more than those payable during the ordinary working hours."

(7) In the title of Part IV the word "and" were struck out and the words "and Spare Ground not set apart for storing goods" were inserted therein after the word "Quays."

(8) Part VI were omitted and in lieu thereof the following were inserted namely:—

"VI.—For use of Spare Areas of Sheds Quays and other Ground set apart for storing goods—

For each month or part thereof—					d.
Deals and battens - per square yard					3
Spars	-	-	"	"	2½
Square timber	-	"	"	"	2
Other goods	-	"	"	"	3

The superintendent of the harbour and docks or other official of the Commissioners thereto empowered by them may at any time and from time to time (a) set apart any part or parts of such spare areas as may have been classified by them as available for storing goods when not otherwise in use and (b) fix the period or periods for which such part is or parts are so set apart at such rates not exceeding those authorised by this Part of this Schedule as the Commissioners may from time to time fix.

The rates for spare areas not so set apart shall be as fixed by the Commissioners under Part IV of this Schedule."

Power to
acquire &c.
Trinity
Chain Pier
public
house.

18. In addition to any powers conferred upon the Commissioners by the Harbour Acts the Commissioners may by agreement acquire sell feu or let on lease or otherwise dispose of with or without consideration an area of ground with buildings thereon commonly known as Trinity Chain Pier public house or bar Trinity Crescent situate in the city or any part or parts thereof or any rights or interests therein.

19. Notwithstanding anything in the Harbour Acts the borrowing powers of the Commissioners under those Acts shall as at the fifteenth day of May one thousand nine hundred and twenty-three be and be deemed to be the sum of two million five hundred and ninety thousand pounds consisting of one million and three thousand four hundred and seventy-four pounds borrowed by the Commissioners as at that date and one million five hundred and eighty-six thousand five hundred and twenty-six pounds which they had not borrowed as at that date.

A.D. 1924.
 —
 Definition
 of existing
 borrowing
 powers of
 Commis-
 sioners.

20. Notwithstanding anything contained in the Harbour Acts the sum of twenty thousand three hundred and nineteen pounds two shillings set apart by the Commissioners as at the fifteenth day of May one thousand nine hundred and twenty-three as a sinking fund for the repayment of borrowed money shall be and be deemed to be a full and complete discharge by the Commissioners of their obligations with respect to sinking fund for repayment of borrowed money under the Harbour Acts up to and including that date.

Definition
 of sinking
 fund.

21. Of the said sum of one million five hundred and eighty-six thousand five hundred and twenty-six pounds which the Commissioners had not borrowed as at the said fifteenth day of May one thousand nine hundred and twenty-three the sum of one million two hundred thousand pounds shall be deemed to consist of (1) the sum of six hundred thousand pounds authorised to be borrowed by section 46 (Power to Commissioners to borrow money) of the Act of 1913 and (2) the sum of six hundred thousand pounds part of the sum of one million two hundred thousand pounds authorised to be borrowed by section 24 (Powers to Commissioners to borrow money) of the Order of 1919 and directed by subsection (b) of section 30 (Application of borrowed money) of that Order to be applied in the manner thereby prescribed and of the remaining sum of three hundred and eighty-six thousand five hundred and twenty-six pounds the sum of forty-nine thousand five hundred and twenty-six pounds shall be deemed to be applicable to the purposes of subsection (B) of section 38 (Power to Commissioners to borrow money) of the

Applica-
 tion of
 existing
 borrowing
 powers.

A.D. 1924. Order of 1908 and the sum of three hundred and thirty-seven thousand pounds shall be deemed to consist of sums authorised to be borrowed by the said section 24 and directed by subsection (a) of the said section 30 to be applied in the manner thereby prescribed.

Postpone-
ment of
sinking fund
payments
on money
borrowed
for quay on
line of Old
East Pier.

22. Notwithstanding the provisions of section 48 (Provision for sinking fund) of the Order of 1908 as applied to the Act of 1913 and the Order of 1919 the Commissioners shall not in the case of moneys borrowed for the purposes of any quay or other like works upon or within the line of the Old East Pier of the Port of Leith between the Albert Dock Basin and the entrance to the Imperial Dock and the contingent construction of the berth in the harbour in front thereof be bound to pay any instalment or make any payment to any sinking fund in respect of moneys so borrowed until the expiration of four years after the date of the passing of the Act confirming this Order. Provided that the period for the completion of the repayment of any moneys so borrowed shall not in any case extend beyond the period prescribed in that behalf in the said section 48 as so applied and if in any case the first instalment or the first payment to any sinking fund be postponed under this section the instalments or payments to sinking fund during the remainder of the period prescribed as aforesaid shall be of such equal annual amounts as will provide for completion of repayment within the period so prescribed.

Postpone-
ment of
payments
to sinking
fund for
other works.

23. Notwithstanding the provisions of section 48 (Provision for sinking fund) of the Order of 1908 as applied to the Act of 1913 and the Order of 1919 the Commissioners shall not in the case of moneys borrowed for the purposes of Work No. 1 authorised by section 7 (Description of works) of the Act of 1913 be bound to pay any instalment or make any payment to any sinking fund in respect of moneys so borrowed until the expiration of seven years after the date of the passing of the Act confirming this Order. Provided that the period for the completion of the repayment of any moneys so borrowed shall not in any case extend beyond the period prescribed in that behalf in the said section 48 as so applied and if in any case the first instalment or the first payment to any sinking fund be postponed

under this section the instalments or payments to sinking fund during the remainder of the period prescribed as aforesaid shall be of such equal annual amounts as will provide for completion of repayment within the period so prescribed. A.D. 1924.

24. Where in the Harbour Acts publication or notice by advertisement is required to be made or given by the returning officer acting under section 11 (Returning officer for and expenses at elections) of the Act of 1892 in one newspaper published in Edinburgh and one newspaper published in Leith such publication shall be made or notice given in lieu thereof in two newspapers published in Edinburgh and where in the Harbour Acts anything is required to be done or appointed by the said returning officer to be done in Leith it shall be done or appointed to be done in Edinburgh. Publication and notice by advertisement of time and place of election of Commissioners &c.

25. Nothing in this Order shall prejudice diminish alter or take away any of the rights powers or authorities vested in the Corporation whether under the provisions of the Edinburgh Boundaries Extension and Tramways Act 1920 or otherwise but all such rights powers and authorities shall be as valid and effectual as if the Act confirming this Order had not been passed and in particular and without prejudice to this generality references to the provost magistrates and councillors of the burgh of Leith by whatever name called occurring in the provisions of the Harbour Acts or any of them relating to or affecting the said provost magistrates and councillors shall be construed as references to the Corporation. For protection of Corporation of Edinburgh.

26. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and Crown rights.

A.D. 1924. — obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of
Order.

27. All costs charges and expenses of and incident to preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Commissioners out of the revenue of their undertaking.

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